

over the essentiality test was that it was a single test for all types of amendment. See also T.422/16 (agreeing with T.1852/13 in the context of Art. 76(1) EPC) and T.833/16.

1.4.5 Removal of set of features

In T.211/95 the examining division had refused a divisional application on the grounds that a set of features from the original claim of the parent application was entirely missing from the claim of the divisional application. The board was unable to accept this. It held that the requirements under Art. 76(1) EPC 1973 would be met if it was obvious for the skilled person that there were **two technically unconnected teachings** which could be claimed separately, and if the skilled person clearly saw that the set of features according to the subject-matter claimed in the parent application was **not essential** to the subject-matter claimed in the divisional application. In the case at hand, the subject-matter of the divisional application was directly and unambiguously disclosed in the parent application. See also T.341/06 and T.694/07.

1.4.6 Removal of a feature indicating the intended purpose

In T.448/03 the claim as granted referred to an "apparatus for ejecting liquid or powdered medium", whereas claim 1 and the description as originally filed referred to an "apparatus for impulse fire extinguishing". The board observed that according to case law, "for" had to be interpreted as meaning "suitable for" and thus "for" did not limit the use of the apparatus to extinguishing fire exclusively. However, the fact that the apparatus was suitable for a given use or was suitable to contain a specific medium implied specific requirements regarding the material the apparatus was made of and its capacity to contain the volume of medium which was necessary to achieve the expected effect, which was to extinguish fire. See also T.1143/17 where the board held that the feature "usable in a process of extrusion coating ..." could only be removed without extending the subject-matter if all compositions defined by amended claim 1 could be used in such a process.

In T.653/03, the original term "diesel engine" in claim 1 was replaced by the term "combustion engine". Thus, the suitability of the claimed method had been generalised. The board did not share appellant 1's view that the intended purpose of the method did not provide a technical contribution to the invention. The technical contribution was that the amended method had to be suitable for any type of combustion engine. Whether the method steps needed real modification or not was irrelevant when the amendment of the claim was not supported by the original application. See also T.923/13 concerning the deletion of the words "for paper containers".

For cases where the removal of a use or purpose feature was considered allowable, see however e.g. T.692/97, T.835/97 and T.235/99. See also T.308/13 where the board came to the conclusion that a certain clause in the description addressed the intended purpose rather than a further functional definition of the claimed compounds and therefore did not need to be included in the claim to avoid an intermediate generalisation.

1.4.7 Elimination of inconsistencies and unclear features

a) Amendment allowed

In T. 271/84 (OJ 1987, 405) it was stated that an amendment to a claim to clarify an inconsistency did not contravene Art. 123(2) or Art. 123(3) EPC 1973 if the amended claim had the same meaning as the unamended claim, on its true construction in the context of the specification.

In T. 758/92 the board allowed the deletion of a feature because it was clearly inconsistent with the teaching disclosed in the application as filed, and there was a clear basis in the original disclosure for its deletion. A skilled reader of the original application documents would have realised that the feature to be deleted was erroneously introduced in the claim because the resulting definition was contradictory to the functioning of the described embodiment of the invention.

In T. 609/95 the board took the position that where a drafting defect or inconsistency in an application would be evident to a reader skilled in the art, the person to whom the application is addressed, it is reasonable to suppose that he would, in the light of the content of the application, attempt to formulate a notional amendment which would enable him to make sense of what he reads, and to the extent that the amendment might be said to leap to the mind of the reader, although perhaps only after close study of the document, it can be regarded as implicit in the application and would not contravene Art. 123(2) EPC 1973, if effected in practice (see also T. 887/97 for such amendment during opposition appeal proceedings).

b) Amendment not allowed

In T. 1464/05, however, the board said that the attempt of the respondent (patent proprietor) to see in the upper ends of range values a removable inconsistency in the application as filed could not, in the context of a wholly consistent and clear disclosure of the application, be accepted.

c) Art. 84 and 123(2) EPC – inescapable trap

In T. 81/13 the board refused claim 1 of the main request as it contained a viscosity feature which the board considered not clear (Art. 84 EPC). In claim 1 of the auxiliary request the appellant deleted this viscosity feature and argued that an unclear and unmeasurable viscosity value was not essential and could be omitted for this reason from the claim; this omission should also be possible to escape the Art. 84 and 123(2) EPC "squeeze", which would lead to an "inescapable trap". The board held that this parameter was revealed to be unclear but remained an essential feature since, even unclear, it conferred on the composition a particular aspect and reflected a composition having specific and essential properties. Also, the presence of an unclear essential feature in a claim did not inevitably lead to an "inescapable trap". If the omission of such feature reflecting essential properties of a claimed product was not possible, its replacement by an equivalent feature providing inevitably the same essential property could be considered as normally feasible. This was

usually possible through the incorporation of adequate technical features able to provide inevitably said property. As a last resort, the claimed subject-matter could even have taken the form of an exemplified subject-matter. In the case at issue, the application as originally filed presented a disclosure deficiency and if there was an inescapable trap, it was rather linked to this deficiency.

T 1420/15 is an example of a case in which the patent proprietor could not escape the trap, as the unclear feature contained in claim 16 as filed, but omitted in the claim as granted, provided a technical contribution by excluding certain types of pet food compositions.

The case law on the "inescapable trap" between the requirements of Art. 123(2) EPC and Art. 123(3) EPC is reported in chapter II.E.3.

1.5. Ranges of parameters – setting upper and lower limits

1.5.1 Forming a range by combination of end points of disclosed ranges

- a) Combination of the preferred narrower range and one of the part-ranges lying within the disclosed overall range

The board in T 925/98 noted that, according to the respondent, the range 30% to 50% given in claim 1 infringed Art. 123(2) EPC 1973, since such a range was not disclosed in the originally filed documents of the patent in suit, which only disclosed a general range of 30% to 60% and a preferred range of 35% to 50%. The board held, however, that, according to the established case law, in the case of such a disclosure of both a general and a preferred range, a combination of the preferred disclosed narrower range and one of the part-ranges lying within the disclosed overall range on either side of the narrower range was unequivocally derivable from the original disclosure of the patent in suit and thus supported by it (see T 2/81, OJ 1982, 394; T 201/83, OJ 1984, 481; and T 53/82, T 571/89, T 656/92, T 522/96 and T 947/96 all referring to T 2/81). In the case in point, moreover, graphs indicated that the claimed range was in fact the most efficient one. This frequently cited decision and/or its principles were referred to, for example, in T 328/10, T 2001/10, T 227/13, T 223/17, T 516/18; see also T 1107/06.

In T 249/12 the board allowed the amendment to the range of "10-50 mass %", which combined the use of the upper limit of the less preferred broader range (50 mass %) and the lower limit of the most preferred narrower range (10 mass %). Since both end points of the new range were both specifically mentioned in the application as filed, the new range was "unequivocally and immediately apparent to the skilled person" (T 2/81), i.e. the range was directly and unambiguously disclosed in the application as filed. See also T 1143/17 which relates to the combination of the lower end point of a preferred range with the upper end point of a more preferred range.

In T 2514/16, the board observed that it was allowable to combine thresholds from different levels of preference as long as the new range could be regarded as directly and unambiguously disclosed for the skilled person (G 2/10, OJ 2012, 376). This would

depend on how the skilled person would construe the amended claim and whether, on the basis of the common general knowledge in the art, they would consider the application to disclose the subject-matter at least implicitly; this would need to be assessed depending on the specific facts of each case. In the case in hand, the disputed amendment had been taken from a passage of the description as originally filed, with the particularly preferred lower value having been combined with the especially preferred higher value. The board found the amendment to be directly and unambiguously derivable from the original application, noting that it amounted to a limitation of a parameter that had been implicitly present in the original claims, not a selection from alternative embodiments set out in the original disclosure.

The board in T 193/17 distinguished the case from T 925/98. It underlined that in T 925/98 the general and the preferred ranges were disclosed in combination, since independent claim 1 as originally filed disclosed a basic range of 30 to 60%, while claim 2 as originally filed, which depended on claim 1, disclosed a preferred range of 35 to 50%. By contrast, in the case underlying T 193/17 the end points of the two ranges claimed (regarding thickness of the surface coating and particle size) were disclosed in four different dependent claims as originally filed, which each depended exclusively on claim^o1. Moreover, T 925/98 dealt with the range of a single parameter, whereas present claim 1 related to the introduction of two parameters.

In T 516/18 the application as filed disclosed two alternative values for each one of the upper and lower limits of the range at stake. The board considered that the person skilled in the art was directly and unambiguously provided with the information that any one of the upper and lower limits proposed could be combined in order to select a suitable range, irrespective of the fact that they were presented as "preferable" or "more preferable" values. The board also noted that, in line with established case law (see e.g. T 925/98), when a disclosure of a general and a preferred, narrower range was provided in the originally filed application, a combination of the narrower range with one of the partial ranges lying within the disclosed general range and located on either side of the narrower range would be considered directly and unambiguously derivable from the originally disclosed ranges.

- b) Combination of the lower limit of the general range with the lower limit of the preferred range

In T 1170/02 the board held that the combination of the lower limit of the general range with the lower limit of the preferred range, thus **excluding the preferred range**, did not fall under the principles developed in decision T 2/81 (OJ 1982, 394). In such a case, it might be useful to ask whether the skilled reader of the parent application would **seriously contemplate** working in the range referred in the divisional application or alternatively whether there was anything in the parent application as filed or his common general knowledge which would cause him to exclude the possibility of working in that range (with reference to T 187/91, OJ 1994, 572). To the board, the skilled person would, in view of the data in the parent application, seriously consider working beyond the lower limit of the preferred range as well. Under these circumstances, the range could be directly and

unambiguously derived from, and is consistent with, the parent application as originally filed. See also T 1389/08 and T 205/13.

Likewise, in T 1389/08, the board considered that the skilled reader would seriously contemplate exploiting the whole disclosed range, including the less suitable range. There was nothing in the parent application as filed or the common general knowledge which would cause the skilled reader to exclude the possibility of working in that range.

In T 612/09, however, the board did not agree with the finding of T 1170/02 that the principles developed in T 2/81 (OJ 1982, 394) were not applicable to situations where the range resulted from the combination of the lower limit of the general range with the lower limit of the preferred range. The board in T 612/09 observed that T 2/81 had established a two-step approach. In the first step, it had considered that the two part-ranges of the general range (in T 612/09: 3 to 75 mg/kg) lying outside the preferred range (in T 612/09: 10 to 25 mg/kg) would be unequivocally and immediately apparent to the person skilled in the art. It had then considered that no new matter was introduced by combining the preferred range with the upper part-range. The board in T 612/09 considered that only the first step of the analysis carried out in decision T 2/81 was necessary to arrive directly and unambiguously at the claimed range. Indeed, the board held that the two part-ranges lying within the overall range on either side of the narrower range (a dose of 3 to 10 mg/kg and a dose of 25 to 75 mg/kg) were directly and unambiguously disclosed to the person skilled in the art. See also T 2159/11. In T 612/09 the board further noted that it could not derive from decision T 201/83 the requirement that the value on which a sub-range was to be based had necessarily to be disclosed in an example.

In T 113/19 the board explained that, although the sole example was not covered by the newly claimed range, this did not mean that range could not be directly and unambiguously derived from the application as filed (T 1389/08). In its view, a person skilled in the art reading the application as filed in the case in hand would regard a composition as having the required property if it had (for the feature in question) a value that was at least equal to the lower threshold of the general range, but would deem those compositions with values above the upper threshold to be even better. The board concluded that the range as claimed – which was limited to what could be deemed satisfactory and excluded anything considered even better – was directly and unambiguously inferable from the teaching of the application as filed.

c) End points which are not part of a range

In T 1919/11 the subject-matter of claim 1 of the main request related to silver at a concentration of at least 1 μM to less than 200 μM . In the description, it was stated in two separate consecutive sentences that "When silver is incorporated in the medium, it will be added at a concentration of less than 900 μM , preferably less than 500 μM , and more preferably less than 200 μM " and "When silver is incorporated in the medium, it will be added at a concentration of at least 10 nM, preferably 100 nM, more preferably 1 μM , and typically at 10 μM ". The board observed that the situation in the case at issue was not comparable with that in T 1107/06 and dealt with in the settled jurisprudence of the boards of appeal. A general range, which means a lower limit which is unequivocally combined